

Avoiding Harassment & Discrimination at Workplace



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Overview

- ◆ What is Harassment?
- ◆ What is Discrimination?
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What is Harassment?

Harassment is any improper and unwelcome conduct that might reasonably be expected or be perceived to cause offence or humiliation to another person.

(UN Women)

Examples:

- Making inappropriate sexual jokes
- Commenting derogatorily on someone's race or gender
- Excluding someone based on a disability
- Using verbal insults or offensive language
- Spreading rumors about a colleague
- Intimidating or threatening behavior by a colleague or supervisor

Forms Of Harassment At Workplace

- **Discriminatory Harassment:** Unfair treatment based on protected characteristics like age, gender, race, religion, or sexual orientation.
- **Personal Harassment:** Repeated actions meant to intimidate or humiliate, based on personal conflicts rather than protected characteristics.
- **Physical Harassment:** Harmful physical acts such as unwanted touching, threats, or damage to property.

- **Sexual Harassment:** Unwelcome sexual advances, jokes, gestures, or any sexual conduct that creates a hostile environment.
- **Power Harassment:** Abuse of authority to intimidate or pressure subordinates, such as unrealistic demands or bullying using hierarchical power.
- **Psychological Harassment:** Mental abuse through humiliation, isolation, belittling, or discrediting, impacting mental health.

- **Retaliation Harassment:** Mistreatment as revenge for reporting misconduct or harassment.
- **Quid Pro Quo Harassment:** Demanding favors in exchange for professional benefits or threatening negative consequences.
- **Online Harassment (Cyberbullying):** Threats, insults, or demeaning comments via digital platforms like email, chat, or social media.
- **Verbal Harassment:** Hostile or abusive language including insults, slurs, offensive jokes, persistent criticism, and gossiping.

What is Discrimination?

Discrimination is any unfair treatment or arbitrary distinction based on a person's race, sex, religion, nationality, ethnic origin, sexual orientation, disability, age, language, social origin or other status.

(UN Women)

Examples:

- A person is not hired or paid less because of their race or gender.
- An older employee is excluded from training opportunities in favor of younger colleagues.
- An employee is denied a promotion because she is pregnant.

Forms Of Discrimination At Workplace

- **Race and Color Discrimination:** Treating someone unfavorably because of their race or skin color.
- **Disability Discrimination:** Unfair treatment of employees with physical or mental disabilities'
- **Gender Discrimination:** Treating employees differently based on their gender, including pregnancy discrimination.

- **Age Discrimination:** Discriminating against employees based on their age, often targeting older workers.
- **Religion Discrimination:** Discrimination based on religious beliefs or practices.

- **National Origin Discrimination:** Treating an employee unfavorably because of their birthplace, ethnicity, or accent.
- **Marital or Family Status Discrimination:** Discrimination based on marital status or responsibilities towards family.
- **Indirect Discrimination:** Neutral policies or practices that disproportionately disadvantage certain groups without valid justification.

Legal Frameworks in Pakistan



- **Article 14:** The dignity of every person is inviolable and must be respected and protected by law.
- **Article 18:** Every citizen has the right to enter upon any lawful profession or occupation and to conduct any lawful business or trade.

- **Article 25:** All citizens are equal before the law and are entitled to equal protection without discrimination based on sex or other grounds.
- **Article 27:** No citizen shall be discriminated against on the basis of race, religion, caste, sex, residence, or place of birth in any appointment to a public office or in the performance of any public function.

The Protection Against Harassment of Women at the Workplace Act, 2010

- Creates a safe working environment free from harassment, abuse, and intimidation for women.
- Applies to all organizations across Pakistan, both public and private sectors.
- Defines harassment broadly, including unwelcome sexual advances, requests for sexual favors, stalking, cyberstalking, verbal, visual, or written sexual conduct, and gender-based discrimination.

- Covers all employees including regular, contractual, interns, and apprentices.
- Requires organizations to adopt a Code of Conduct against harassment.
- Mandates establishment of complaint and inquiry mechanisms by designating Competent Authorities or Inquiry Committees.

- Provides protection against retaliation or victimization of complainants.
- Harassment includes any single incident that makes a person uncomfortable or fearful at the workplace.
- Reflects commitment to international labor and human rights standards and aligns with Islamic principles of dignity.

(2022 Amendment)

- Expands scope to explicitly include stalking, cyberstalking, and broader forms of verbal, visual, and written communication as harassment.
- Recognizes both sexual and non-sexual gender-based discrimination as harassment.
- Broadens the definition of workplace to include informal sectors, virtual workplaces, apprentices, trainees, domestic workers, and freelancers.

(cont...)

(2022 Amendment)

- Protects complainants from retaliation and victimization more explicitly.
- Strengthens institutional mechanisms for complaint resolution and enforcement at all workplace levels.
- Aims for more inclusive protection covering women in diverse and non-traditional work environments.

- Autonomous quasi-judicial statutory body established under the Protection Against Harassment of Women at the Workplace Act, 2010.
- Primary mandate to address and prevent workplace harassment, ensuring safe and respectful work environments.
- Authorized to receive, investigate, and adjudicate complaints of harassment at workplaces nationwide.
- Has the power to recommend disciplinary action, impose penalties, and award compensation in harassment cases.

- Ensures all organizations establish internal complaint committees to handle harassment complaints.
- Conducts awareness campaigns and educates the public about rights and responsibilities related to workplace harassment and women's property rights.
- Operates regional offices for accessibility and timely complaint resolution.

- Provides speedy justice and promotes accountability and dignity for women at workplaces.
- Led by the Federal Ombudsperson who oversees organizational functions and enforces compliance with laws.
- Committed to protecting individuals of all genders from harassment and discrimination.
- Acts as a critical institution in Pakistan's governance system to safeguard women's economic empowerment and gender equality.

Uzma Naveed Chaudhry v. Federation of Pakistan (PLD 2022 SC 783)

- Uzma Naveed Chaudhry filed a complaint of sexual harassment and hostile behavior against several colleagues at Pakistan Television.
- She faced verbal abuse, sexist remarks, and a generally hostile work environment that affected her mental well-being.
- Despite reporting the incidents, the organization's management failed to effectively address or investigate the harassment.
- The Supreme Court upheld her complaint, reinforcing protections against workplace harassment under Pakistani law, even after resignation.
- The case highlights the challenges women face in hostile workplace environments and the legal recourse available against discrimination and harassment.

International Legal Frameworks



Universal Declaration of Human Rights (UDHR)

Article 7

Establishes the principle of equality before the law and protection against discrimination, which is foundational for addressing workplace discrimination and harassment.

Convention on the Elimination of All Forms of Discrimination Against Women (CEDAW, 1979)

A key international treaty specifically targeting discrimination against women, including in employment, obliging states to eliminate discrimination and promote equality at work.

Beijing Platform for Action (1995)

Provides a comprehensive framework aimed at eliminating gender-based discrimination and bias in various areas including the workplace, supporting efforts to create equal opportunities and a harassment-free environment.

International Labour Organization (ILO)

Convention No. 111 (C111)

- ILO Convention No. 111 (C111) is the International Labour Organization's Discrimination (Employment and Occupation) Convention, adopted in 1958.
- It aims to eliminate discrimination in employment and occupation.
- Defines discrimination as any distinction, exclusion, or preference made based on race, color, sex, religion, political opinion, national extraction, or social origin that nullifies or impairs equality of opportunity or treatment in employment.
- It requires ratifying states to adopt laws and policies to prohibit discrimination and promote equality of opportunity and treatment in employment and occupation.

- Applies broadly to all workers in all sectors, including public, private, formal, and informal economies.
- Grounds for discrimination can be expanded by states through consultation with employers and workers.
- The Convention is one of the ILO's fundamental conventions and is widely ratified by member states.
- It is complemented by Recommendation No. 111, which provides non-binding guidelines for application.

International Labour Organization (ILO)

Convention No. 190 (C190)

- First international treaty to explicitly address violence and harassment in the world of work, including gender-based violence.
- Defines violence and harassment as unacceptable behaviors or threats causing physical, psychological, sexual, or economic harm, including single or repeated occurrences.
- Protects all workers, including employees, interns, apprentices, volunteers, job seekers, and those with terminated contracts.

- Extends protection beyond the traditional workplace to cover work-related environments such as private workspaces, break rooms, employer-provided accommodation, travel for work, work events, work communications (including digital), and commuting.
- Mandates national laws to prohibit violence and harassment and adopt prevention, protection, and complaint mechanisms.
- Requires mechanisms ensuring privacy, protection from retaliation, and support (legal, social, medical, administrative) for complainants and victims.

- Employees have the right to remove themselves from dangerous work situations without penalty.
- Recognizes the evolving nature of work, including digital forms of work and non-standard employment arrangements.
- Supports gender-responsive approaches and policies to address gender-based violence at work.
- Calls for effective sanctions against perpetrators and promotes a culture of respect and dignity in the workplace.

Behavior Guidelines in the Workplace



Behavior Guidelines for Employees

a. Maintain Professional Conduct

- Treat everyone with dignity and respect, regardless of gender, rank, culture, or background.
- Use polite, inclusive, and gender-neutral language.
- Avoid offensive jokes, gossip, or comments about someone's appearance or personal life.
- Keep professional boundaries — avoid unnecessary physical contact or overly personal conversations.

Behavior Guidelines for Employees

b. Communication Etiquette

- Be mindful of tone (in person and online).
- Refrain from using language, emojis, or humour that could be misinterpreted.
- Respect others' privacy and personal space.

Behavior Guidelines for Employees

c. Accountability

- Take responsibility for your actions and language.
- If someone expresses discomfort, **listen and adjust** your behavior immediately.
- Don't trivialize harassment or discrimination complaints — show empathy and understanding.

Behavior Guidelines for Managers

a. Lead by Example

- Model respectful, inclusive, and fair behavior at all times.
- Be conscious of the power dynamic — avoid actions that could be seen as coercive or intimidating.
- Maintain professionalism in both formal and informal settings (including office events or online chats).

Behavior Guidelines for Managers

b. Foster an Inclusive Environment

- Encourage open communication and feedback.
- Ensure all employees have equal access to opportunities, mentorship, and participation.
- Recognize and address biases in hiring, promotions, or task assignments.

Behavior Guidelines for Managers

c. Respond to Complaints Appropriately

- Take all complaints **seriously**, no matter how small they seem.
- Maintain **confidentiality** while investigating.
- Avoid **retaliation** or favoritism.
- Ensure the reporting process is transparent and fair.

Role of the Organization

- Develop clear policies on harassment and discrimination with behavior expectations.
- Provide regular training and communication on respectful workplace behavior.
- Establish confidential reporting and complaint resolution mechanisms.
- Foster a culture that values diversity, inclusivity, and respect.
- Monitor and evaluate workplace climate and take corrective actions as needed.
- Protect employees from retaliation after reporting misconduct.

Role of Bystanders

- Recognize signs of harassment or discrimination.
- Intervene safely or support the affected individual when possible.
- Report observed incidents to management or HR.
- Encourage a respectful workplace culture collectively.

 Do's	 Don'ts
Treat everyone with dignity	Make jokes about gender, ethnicity, religion, or appearance
Ask for consent before personal discussions	Touch colleagues unnecessarily
Respect personal boundaries	Ignore or dismiss someone's discomfort
Speak up against bias	Spread rumors or gossip
Keep professional communication online and offline	Use unprofessional or suggestive language